

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 98-069

WASTE DISCHARGE REQUIREMENTS
FOR
YOSEMITE MOTELS GENERAL PARTNERSHIP
AND YOSEMITE MOTELS, INC.
CEDAR LODGE WASTEWATER TREATMENT FACILITY
MARIPOSA COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Board) finds that:

1. Yosemite Motels, Inc., a California corporation, submitted a Report of Waste Discharge (RWD) and technical information dated 25 February 1998 in support of a discharge of domestic sewage generated by the Cedar Lodge motel and restaurant to a new wastewater treatment facility and then to both existing and new leachlines/sand filters (treatment facility and disposal system hereafter referred to as WWTF). Cedar Lodge is operated by Yosemite Motels, Inc. The motel and 26.4 acre parcel (Assessor's Parcel No. 006-060-002) is owned by Yosemite Motels General Partnership, as described below.
2. The Yosemite Motels General Partnership consists of Lloyd Fishcer, Shirley Fishcer, Gerald Fishcer, Karane Fishcer, Thomas Fishcer, Leslie Fishcer, Steven Fishcer, Charles Fishcer, and Christina Fishcer. Yosemite Motels, Inc., and the Yosemite Motels General Partnership and all its members are hereafter referred to as Discharger.
3. Cedar Lodge currently consists of 206 motel units in six buildings, ten apartments, and a restaurant/lounge that produce an estimated 25,600 gallons per day (gpd) of wastewater at 100% occupancy. The site is on a natural bench between the Merced River to the northwest and a steep hillside to the southeast. Actual peak occupancy is 95% and occurs during the summer. Winter occupancy is less than 15%. The average annual occupancy is between 50% and 60%. Wastewater from the various motel units and restaurant/lounge is discharged to ten septic tank/leachfield and/or septic tank sand filter systems for treatment and disposal. The current septic systems are insufficient for the current wastewater flows. Two of the ten septic tank/leachfield and/or septic tank sand filters have recently failed and groundwater monitoring wells have occasionally shown high nitrate concentrations. Current discharges are not regulated by waste discharge requirements.
4. The Discharger proposes to install a 50,000 gpd extended aeration package treatment plant with denitrification and filtration to treat the current wastewater flows plus the flows that will be generated by an additional 44 motel units, 11 of which may be constructed under the existing conditional use permit (CUP) for the site, and a four bedroom residence that is also permitted under the CUP. Construction of the remaining 33 units will require modification of the site CUP and more extensive review under the California Environmental Quality Act (CEQA). The total estimated 100% occupancy flow at

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buildout will be approximately 30,000 gpd. Although the treatment system will be designed for buildout flows, this Order only addresses flows for the number of units that are, or will be, allowed under the existing CUP (approximately 25,600 gpd). Treated wastewater will be discharged to a combination of new and old leachlines and sand filters that will include approximately 930 feet of new leachlines (six feet deep by three feet wide) (hereafter designated disposal areas). The leachlines will be fitted with electronic sensors to measure the depth of wastewater in the leach trenches. The RWD provides for a 100% reserve area for the construction of new leachlines should existing or proposed leachlines and/or sand filters fail. The expected quality of the treated wastewater follows:

<u>Constituent</u>	<u>Concentration (mg/l)</u>
BOD	<10
Total suspended solids (TSS)	< 10
Total Kjeldahl Nitrogen	< 2
Ammonia Nitrogen	< 2
Nitrate Nitrogen (as NO ₃)	< 7 (31.5)

5. The WWTF is at Latitude N 37° 32' and Longitude W 119° 51' 13", with surface water drainage to the Merced River, as shown in Attachment A, which is attached hereto and part of this Order by reference. The site lies within the Merced River Hydrologic Unit, Yosemite Hydrologic Area (No. 537.50), as depicted on interagency hydrologic maps prepared by the Department of Water Resources in August 1986.
6. The Board adopted a *Water Quality Control Plan, Third Edition, for the Sacramento River Basin and San Joaquin River Basin*, (hereafter Basin Plan) which designates beneficial uses, establishes water quality objectives (WQOs), and contains implementation plans and policies for waters of the Basin. These requirements implement the Basin Plan.
7. The Merced River is a Wild and Scenic River. Its beneficial uses are municipal and domestic supply, agricultural supply, hydropower generation, water contact recreation, non-contact water recreation, warm freshwater habitat, cold freshwater habitat, and wildlife habitat.
8. The beneficial uses of underlying groundwater are municipal and domestic supply, agricultural supply, industrial service supply, and industrial process supply.
9. The site is underlain by 15 to 25 feet of loose alluvial deposits and approximately 30 feet of weathered bedrock (i.e., decomposed granite). The alluvial deposits consist of clayey gravels, silty gravels, silty sands, gravels, large rocks, and cobbles. At least 22 percolation tests have been conducted by three different consultants during four investigations at the site. The results are listed below.

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<u>Investigation Date</u>	<u>Test Hole</u>	<u>Depth (inches)</u>	<u>Percolation Rate in Minutes Per Inch (mpi)</u>
4/7/81	1	na	26
	2	na	44
	3	na	40
	4	na	31
	5	na	15
	6	na	37
11/4/85	1	38	7
	2	40	15
	3	36	10.9
	4	35	"too fast"
	5*	na	8.75
1990	1	60	> 2.0
	2	72	5.0
	3	54	5.0
	4	66	5.0
	5	36	4.0
	6	na	na
	7	66	12
	8	42	6.5
3/15/91	1	72	0.50
	2	72	2.10
	3	72	0.52
	4	72	0.4

* Average of five tests.

na Not available

10. The Discharger has installed six shallow groundwater monitoring wells at the site to monitor for impacts resulting from wastewater discharges from the existing septic systems. The Discharger has also provided an antidegradation analysis dated 11 February 1998 and entitled *Ground Water Quality Degradation Analysis, Cedar Lodge Project (hereafter analysis)*. The analysis indicates that the alluvial deposits discussed in Finding No. 9 are largely unsaturated and act to convey water to the underlying weathered bedrock zone, where most of the shallow groundwater beneath the site occurs. Depth to groundwater ranges from 19 feet below ground surface (bgs) to approximately 37 feet bgs. Shallow groundwater is likely a combination of deep groundwater emanating from the fractures associated with the southern hillside and recharge from the Merced River. The analysis indicates that there are seasonal fluctuations in shallow groundwater quality, and that, generally speaking, the salinity, as measured by conductance, and nitrate concentrations increase during the late fall and early winter and decrease in the late winter and spring. Shallow groundwater beneath the site generally flows to the northwest toward the River and in 1997 exhibited conductivities ranging from a November high of 978 $\mu\text{mhos/cm}$ in

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monitoring well No. 5 to a April low of 211 μ mhos/cm in monitoring well No. 1. Nitrates in the monitoring wells ranged from 2.1 mg/l to 36.3 mg/l in 1997 and, have been recorded as high as 127 mg/l or almost three times the State drinking water Maximum Contaminant Level of 45 mg/l. Groundwater monitoring wells have also tested positive for total and fecal coliform; however, the monitoring well casings are uncapped. The antidegradation analysis indicates that the background quality of underlying groundwater is as follows:

<u>Constituent</u>	<u>Units</u>	<u>Value</u>
Conductance @ 25° C	μ mhos/cm	350
Total Coliform	MPN/100 ml	< 2.0
Fecal Coliform	MPN/100 ml	< 2.0
Nitrate (as N)	mg/l	14 (3.1)

11. Source water is provided by six operational hard-rock wells. The wells are at least 200 feet from existing and proposed leachfields and/or sand filters. Well one is in a designated reserve disposal area and will be destroyed if additional leachlines are needed. The water produced by the wells is of good quality. Source water is of good quality with well No. 5 producing a total dissolved solids (TDS) of around 160 mg/l (conductance of 270) and a nitrate of 0.8 mg/l. Nitrate concentrations in well No. 1, which may be influenced by discharges from the septic systems, were as high as 19.1 in 1997.
12. The average annual rainfall at in the vicinity of Cedar Lodge is probably between 29 and 39 inches.
13. The RWD does not discuss WWTF solids disposal.
14. The proposed WWTF and leachfield areas will be surrounded by the Cedar Lodge compound. Highway 140 and the Merced River lie directly to northwest of the compound. The land to the southeast is primarily unoccupied hill side. To the southwest is generally unoccupied. The property to the northeast is sparsely populated.
15. The new permitted discharge is consistent with the antidegradation provisions of State Water Resources Control Board Resolution 68-16. The degree of treatment provided by the WWTF and particularly the decrease in nitrogen and nitrate loading to the disposal areas will prevent further significant impacts on underlying groundwater and should improve the quality of groundwater with respect to coliform and nitrates.

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On 14 April 1998, Mariposa County approved a mitigated negative declaration for the WWTF, in accordance with the CEQA, (Public Resources Code Section 21000, et seq.) and the State CEQA Guidelines. The Board has reviewed the mitigated negative declaration, and concurs that there will be no significant impacts on water quality.

16. The Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge and has provided them with an opportunity for a public hearing and an opportunity to submit their written views and recommendations.
17. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that the general partners of Yosemite Motels General Partnership and Yosemite Motels, Inc., their agents, successors, and assigns, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following at the above described facility:

A. Discharge Prohibitions:

1. Discharge of wastes to surface waters or surface water drainage courses is prohibited.
2. Bypass or overflow of untreated or partially treated waste is prohibited.
3. Discharge of wastes to areas other than the designated disposal areas as described in Finding No. 4 is prohibited.
4. Discharge of waste classified as 'hazardous,' as defined in Section 2521(a) of Title 23, California Code of Regulations (CCR), Section 2510, et seq., or 'designated,' as defined in Section 13173 of the California Water Code, is prohibited

B. Discharge Specifications:

1. The monthly average daily discharge shall not exceed 26,000 gallons.
2. Discharged effluent shall remain underground at all times.
3. Effluent from the WWTF shall not exceed the following limits:

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<u>Constituents</u>	<u>Units</u>	<u>Monthly Average</u>	<u>Daily Maximum</u>
BOD ¹	mg/l	10	15
TSS ²	mg/l	10	15
Settleable Solids	ml/l	--	0.1
Nitrate-N (as NO ₃)	mg/l	--	7.0 (31.5)
Total Kjeldahl Nitrogen	mg/l	--	2.0

¹ 5-day, 20°C biochemical oxygen demand (BOD).

² Total suspended solids.

4. Objectionable odors originating at this facility shall not be perceivable beyond the limits of the wastewater treatment area.
5. The WWTF shall be designed, constructed, operated, and maintained to prevent inundation or washout due to floods with a 100-year return frequency.
6. Public contact with the wastewater shall be precluded through such means as fences and signs, or acceptable alternatives.
7. Leaching trenches shall be designed and constructed to provide at least five feet of suitable soil between the trench bottoms and the highest anticipated groundwater or fractured bedrock.
8. Rainfall run-on shall be precluded from entering designated disposal areas.
9. Leachlines shall be designed, constructed, and maintained to meet, at minimum, the following setbacks:

<u>Setback Distance (feet)</u>	<u>To</u>
4h	Cut or Fill Bank ¹
50	Property Lines
50	Ephemeral Stream ²
100	Flowing Stream ³
150	Domestic Wells, Public Wells

¹ Distance in feet equals four times the vertical height (h) of the cut or fill bank. Distance is measured from the top edge of the bank.

² As measured from the edge of the drainage course or stream.

³ As measured from the line which defines the limit of a 10-year flood.

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C. Solids Disposal Specifications:

1. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed of in a manner approved by the Executive Officer and consistent with *Consolidated Regulations for Treatment, Storage, Processing, or Disposal of Solid Waste*, as set forth in Title 27, CCR, Division 2, Subdivision 1, Section 20005, et seq.
2. Any proposed change in sludge use or disposal practice shall be reported to the Executive Officer **at least 60 days in advance** of the change.
3. Use and disposal of sewage sludge shall comply with existing federal, state, and local laws, regulations, and ordinances, including permitting requirements and technical standards in 40 Code of Federal Regulations, Part 503 (40 CFR 503).

D. Groundwater Limitations:

The discharge, in combination with other sources, shall not cause underlying ground water to contain waste constituents in concentrations statistically greater than background water quality.

E. Provisions:

1. The Discharger shall comply with Monitoring and Reporting Program No. 98-069, which is part of this Order, and any revisions thereto as ordered by the Executive Officer.
2. The Discharger shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements," dated 1 March 1991, which are attached hereto and by reference a part of this Order. This attachment and its individual paragraphs are commonly referenced as "Standard Provision(s)."
3. The Discharger shall submit by **1 August 1998** an operations and maintenance manual for the operation of the WWTF. The manual shall describe operational and maintenance measures and a contingency plan (see Standard Provision A.9) that will be implemented to ensure consistent compliance with this Order, and specifically Discharge Specification Nos. B.3, B.4, B.6, and B.8, and Solids Disposal Specification No. C.1. The manual shall also include a detailed description of all WWTF components, including treatment units, alarms, and backup power systems.

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4. When the Discharger determines that an individual leachline and/or sand filter has failed, or is in danger of failing, it shall take appropriate action to assure the disposal system component is repaired or replaced to the satisfaction of the Board and the Mariposa County Environmental Health Director. The costs associated with the proper destruction of water well No. 1 and/or the destruction of paved areas shall not be used as a defense against installing new leachlines to replace failing leachlines and/or sand filters.
5. The Discharger shall properly maintain its groundwater monitoring wells and shall monitor them as described in the attached Monitoring and Reporting Program. In addition, by **17 June 1998** the Discharger shall submit a program for modifying its groundwater monitoring network. The program shall include a work plan and time schedule for installing well casing caps sufficient to maintain sanitary conditions in the well casings between sampling events and a description of how the wells will be disinfected and purged prior to the first groundwater monitoring event required by this Order. The work plan shall be prepared under the supervision of and properly signed and stamped by a California registered civil engineer or geologist.
6. The Discharger shall complete construction of the proposed WWTF by **1 June 1998**, at which time the prohibitions and specifications of this Order shall become effective. Prior to **15 June 1998**, the Discharger shall submit a written certification that the proposed WWTF has been installed as designed. The certification shall be signed and stamped by a California registered civil engineer.
7. The Discharger shall use the best practicable control technique currently available to comply with this Order.
8. In the event of any change in control or ownership of land or waste discharge facilities described herein, the Discharger shall notify the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be immediately forwarded to this office.

To assume operation under this Order, the succeeding owner or operator must apply in writing to the Executive Officer requesting transfer of the Order. The request must contain the requesting entity's full legal name, the State of incorporation if a corporation, the name and address and telephone number of the persons responsible for contact with the Board, and a statement. The statement shall comply with the signatory paragraph of Standard Provision B.3 and state that the new owner or

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operator assumes full responsibility for compliance with this Order. Failure to submit the request shall be considered a discharge without requirements, a violation of the California Water Code. Transfer shall be approved or disapproved by the Executive Officer.

9. The Discharger must comply with all conditions of this Order, including timely submittal of technical and monitoring reports as directed by the Executive Officer. Violations may result in enforcement action, including Regional Board or court orders requiring corrective action or imposing civil monetary liability, or in revision or rescission of this Order.
10. The Discharger shall submit to the Board on or before each report due date the specified document or, if an action is specified, a written report detailing evidence of compliance with the date and task. If noncompliance is being reported, the reasons for such noncompliance shall be stated, plus an estimate of the date when the Discharger will be in compliance. The Discharger shall notify the Board by letter when it returns to compliance with the time schedule.
11. A copy of this Order shall be kept at Cedar Lodge and available for reference by Board staff and operating personnel. Personnel responsible for the maintenance and operation of the WWTF shall be familiar with the contents of this Order.
12. The Board will review this Order periodically and will revise requirements when necessary.

I, GARY M. CARLTON, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 17 April 1998.

GARY M. CARLTON, Executive Officer

WDH:wdh/fmc: 4/17/98

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
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MONITORING AND REPORTING PROGRAM NO. 98-069
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Specific sample station locations shall be established with concurrence of the Board's staff. A description of the stations shall be submitted to Board and attached to this Program.

EFFLUENT MONITORING

Except for flow, which may be measured at the headworks, effluent samples shall be collected downstream of the last treatment unit and just prior to discharge to the dosing tank. Effluent samples shall be representative of the volume and nature of the discharge. Time of collection of grab samples shall be recorded. Effluent monitoring shall include at least the following:

<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling³ Frequency</u>
Flow	gpd	Continuous	Daily
Conductivity @ 25E C	µmhos/cm	Grab	2/month
pH	pH units	Grab	2/month
BOD ₅ ¹	mg/l	Grab	2/month
Total Suspended Solids	mg/l	Grab	2/month
Settleable Solids	mg/l	Grab	2/month
Total Kjeldahl Nitrogen	mg/l	Grab	2/month
Nitrate Nitrogen	mg/l	Grab	2/month
Standard Minerals ²	mg/l	Grab	Annually

¹ Five-day, 20E C biochemical oxygen demand.

² Standard Minerals shall include, total dissolved solids, volatile dissolved solids, and all major cations and anions, and include a verification that the cation/anion analysis is complete (i.e., a cation/anion balance).

³ If monitoring results appear to indicate a violation or potential violation of effluent limits, but monitoring frequency is not sufficient to validate the violation, the sampling frequency shall be increased, as necessary, to confirm the magnitude and duration of violation.

DISPOSAL AREA MONITORING

The Discharger shall inspect the designated disposal areas at least weekly. In conducting the inspection, a log shall be kept of the condition of the area. Distribution boxes and/or valves shall be inspected monthly for early detection of needed maintenance. Special attention shall be given to the presence or absence of erosion, surfacing effluent, rodent burrows and vectors. A summary of the entries made, including any corrective actions taken in the log during each month shall be submitted along with the monitoring report the following month.

SLUDGE MONITORING

Prior to disposal, a composite sludge sample shall be analyzed for the following metals:

Cadmium	Lead
Chromium	Nickel
Copper	Zinc

Analytical results shall be submitted to the Executive Officer. Sampling records shall be retained for a minimum of five years. A log shall be kept of sludge quantities generated and of handling and disposal activities. The frequency of entries is discretionary; however, the log should be complete enough to serve as a basis for part of the annual report. **By 20 January of each year, the Discharger shall submit a description of present and proposed disposal methods.** If more than one method is used, include the percentage of annual sludge production disposed by each method:

1. For **landfill disposal**, include a) the Regional Board's WDR number that regulates the landfill(s) used, b) the present classifications of the landfill(s) used, c) the names and locations of the facilities receiving sludge.
2. For **land application**, include a) the location of the site(s), b) the Regional Board's WDR numbers that regulate the site(s), c) a technical report analyzing application rates and procedures relative to Department of Health Services' Manual of Good Practices for Landspreading of Sewage Sludge and EPA's Process Design Manual for land application of Municipal Sludges and Title 23, California Code of Regulations, Section 2511 (f) and (d) subsequent uses of the land.
3. For **composting**, include a) the location of the site(s), and b) the Regional Board's WDR numbers that regulate the site(s).

GROUNDWATER MONITORING

The Discharger shall maintain and sample all groundwater monitoring wells as described herein. The groundwater surface elevation (in feet and hundredths, M.S.L.) and depth to ground water (in feet and hundredths below ground surface) in all wells shall be measured and reported on a quarterly basis and used to determine the gradient and direction of groundwater flow. Groundwater samples shall be collected from the wells and analyzed as follows:

<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u>
Conductivity @ 25E C	µmhos/cm	Grab	Quarterly
Total Coliform Organisms	MPN ¹ /100 ml	Grab	Quarterly
Fecal Coliform Organisms	MPN ¹ / 100 ml	Grab	Quarterly
Standard Minerals ²	mg/l	Grab	Quarterly

¹ Most probable number.

² Standard Minerals shall include pH, total dissolved solids, volatile dissolved solids, nitrate and all other major cations and anions, and include a verification that the cation/anion analysis is complete (i.e., a cation/anion balance).

WATER SUPPLY MONITORING

A sampling station shall be established where a representative sample of the water supply can be obtained:

<u>Constituents</u>	<u>Units</u>	<u>Sampling Frequency</u>
Conductance @ 25/C	: mhos/cm ¹	Quarterly
Standard Minerals ²	mg/l	Quarterly
Nitrate Nitrogen	mg/l	Quarterly

¹ If the water supply is from more than one well, the conductance shall also be reported as a flow weighted average.

² Standard Minerals shall include pH, total dissolved solids, volatile dissolved solids, nitrate and all other major cations and anions, and include a verification that the cation/anion analysis is complete (i.e., a cation/anion balance).

REPORTING

Monthly monitoring reports including data for all constituents monitored at least monthly shall be submitted to the Board by the **20th day** of the month following sample collection. Results from samples collected quarterly or semi-annually shall be included within the monthly monitoring report for the month following the end of the calendar quarter or half (i.e., quarterly results for the first quarter shall be submitted with the monthly monitoring report for due in April).

Annual monitoring reports of the wastewater system shall be submitted by **20 January** of each year and shall include the dates, volumes and final destination of any sludge or solids removed from the WWTF.

In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernible. The data shall be summarized in a manner that clearly illustrates whether the Discharger complies with waste discharge requirements.

If the Discharger monitors any pollutant at the locations designated herein more frequently than is required by this Order, the results of such monitoring shall be included in the discharge monitoring report.

By **20 January of each year**, the Discharger shall submit a written report to the Executive Officer containing the following:

- a. The names, titles, certificate grade (if any), and general responsibilities of persons operating and maintaining the WWTF.
- b. The names and telephone numbers of persons to contact regarding the WWTF for emergency and routine situations.
- c. A certified statement of when the flow meter and other monitoring instruments and devices were last calibrated, including identification of who did the calibration (Standard Provision C.4).
- d. A statement whether the current operation and maintenance manual, and contingency plan, reflect the wastewater treatment plant as currently constructed and operated, and the dates when these documents were last reviewed for adequacy.

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All reports submitted in response to this Order shall comply with the signatory requirements in Standard Provision B.3.

The Discharger shall implement the above monitoring program on the first day of the month following startup of the new WWTF.

Ordered by: _____
GARY M. CARLTON, Executive Officer

17 April 1998
(Date)

WDH:wdh/fmc: 4/17/98

INFORMATION SHEET

YOSEMITE MOTELS GENERAL PARTNERSHIP
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Yosemite Motels, Inc., operates the Cedar Lodge motel. The motel and 26.4-acre parcel are owned by Yosemite Motels General Partnership. Both entities are hereafter referred to as Discharger.

Cedar Lodge currently consists of 206 motel units in six buildings, ten apartments, and a restaurant/lounge that produce an estimated 25,600 gallons per day (gpd) of wastewater at 100% occupancy. The site is on a natural bench between the Merced River to the northwest and a steep hillside to the southeast. Peak occupancy is 95% and occurs during the summer. Winter occupancy is less than 15%. The average annual occupancy is between 50% and 60%. Wastewater from the various motel units, apartments, and restaurant/lounge is discharged to ten septic tank/leachfield and/or septic tank sand filter systems for treatment and disposal. Historically, the Mariposa County Department of Environmental Health has regulated wastewater discharges at the site. However, the current septic systems are insufficient for the current wastewater flows, resulting in the recent failures of two of the ten septic tank/leachfield and/or septic tank sand filter systems. Additionally, groundwater monitoring conducted by the Discharger indicates that the septic systems have degraded groundwater with salts, nitrates, and possibly coliform.

To improve the quality of its discharge and reduce its effects on underlying groundwater, the Discharger proposes to install a 50,000 gpd extended aeration package treatment plant with denitrification and filtration to treat the current wastewater flows plus the flows that will be generated by an additional 44 motel units, 11 of which may be constructed under the existing conditional use permit (CUP) for the site, and a four bedroom residence. The construction of the remaining 33 units will require modification of the site CUP and more extensive review under the California Environmental Quality Act (CEQA). The total estimated 100% occupancy flow at buildout will be approximately 30,000 gpd. Although the treatment system will be designed for buildout flows, this Order only allows flows for the number of units that are, or will be, allowed under the existing CUP (approximately 26,000 gpd). Treated wastewater will be discharged to a combination of new and old leachlines and sand filters that will include approximately 930 feet of new leachlines (six feet deep by three feet wide) (hereafter designated disposal areas). The leachlines will be fitted with electronic sensors to measure the depth of wastewater in the leach trenches. The RWD provides for a 100% reserve area for the construction of new leachlines should existing or proposed leachlines and/or sand filters fail.

The site is underlain by 15 to 25 feet of loose alluvial deposits and approximately 30 feet of weathered bedrock (i.e., decomposed granite). The alluvial deposits consist of clayey gravels, silty gravels, silty sands, gravels, large rocks, and cobbles. At least 22 percolation tests have been conducted by three different consultants during four investigations at the site. The rates range from “too fast” to 44 minutes per inch (mpi). The median percolation rate is on the order of six minutes per inch. The Discharger has

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installed six shallow groundwater monitoring wells at the site to monitor for impacts resulting from wastewater discharges from the existing septic systems. Shallow groundwater exists primarily in the weathered bedrock zone. Depth to groundwater ranges from 19 feet below ground surface (bgs) to approximately 37 feet bgs. Shallow groundwater is likely a combination of deep groundwater emanating from the fractures associated with the southern hillside and recharge from the Merced River. Accordingly, groundwater quality exhibits seasonal fluctuations. Generally speaking, the salinity, as measured by conductance, and nitrate concentrations increase during the late fall and early winter (low River flow) and decrease in the late winter and spring (snow melt season). Shallow groundwater beneath the site generally flows to the northwest toward the River and in 1997 exhibited conductivities ranging from a November high of 978 $\mu\text{mhos/cm}$ in monitoring well No. 5 to a April low of 211 $\mu\text{mhos/cm}$ in monitoring well No. 1. Nitrates in the monitoring wells ranged from 2.1 mg/l to 36.3 mg/l in 1997 and, have been recorded as high as 127 mg/l or almost three times the State drinking water Maximum Contaminant Level of 45 mg/l. Groundwater monitoring wells have also tested positive for total and fecal coliform; however, the monitoring well casings are uncapped. Background groundwater quality has an estimated conductance of 350 $\mu\text{mhos/cm}$ and a nitrate of approximately 14.3 mg/l.

Source water is provided by six operational hard-rock wells. The wells are at least 200 feet from existing and proposed leachfields and/or sand filters. Well one is in a designated reserve disposal area and will be destroyed if additional leachlines are needed. The water produced by the wells is of good quality. Source water is of good quality with well No. 5 producing a total dissolved solids (TDS) of around 160 mg/l (conductance of 270) and a nitrate of 0.8 mg/l. Nitrate concentrations in well No. 1, which may be influenced by discharges from the septic systems, were as high as 19.1 mg/l in 1997.

The average annual rainfall in the vicinity of Cedar Lodge is probably between 29 and 39 inches.

The proposed discharge increase is consistent with the antidegradation provisions of State Water Resources Control Board Resolution 68-16. The degree of treatment provided by the WWTF and particularly the decrease in nitrogen and nitrate loading to the disposal areas will prevent further significant impacts on underlying groundwater and should improve the quality of groundwater with respect to coliform and nitrates.

On 14 April 1998, Mariposa County approved a mitigated negative declaration for the WWTF, in accordance with the CEQA, (Public Resources Code Section 21000, et seq.) and the State CEQA Guidelines. The Board has reviewed the mitigated negative declaration, and concurs that there will be no significant impacts on water quality.

WDH:wdh/fmc: 4/17/98